

cause of action was sufficiently stated. Each of the other grounds discussed with respect to conversion apply equally to this cause of action.

III. Motion to Stay

Defendants have also moved to stay this action pending resolution of several probate matters and one forcible detainer matter. Plaintiff opposes the motion. The motion is **denied**.

Defendants' premise for a stay is that the "validity of the competing trust, to wit the 2023 Trust and 2017 Trust may justify or fail to justify the actions taken by defendants in this case." As pleaded, there are no allegations concerning the validity or lack thereof, of any trust. Further, as pointed out in a footnote, the surplus funds at issue here were not issued to a trust, but to decedent herself. The validity of competing trusts is not crucial to the outcome here. Should any determination regarding such validity be made in the probate cases, parties may provide it to the Court and the Court will address its effects at that time. A determination would not necessarily vindicate the defendants' actions in this case or resolve plaintiff's claims.

12. 9:00 AM CASE NUMBER: C24-02896
CASE NAME: STEVEN SMITH VS. DONALD IWUCHUKWU
***HEARING ON MOTION IN RE: TO STAY THIS ACTION PENDING RESOLUTION OF THE RELATED CONSOLIDATED ACTIONS**
FILED BY: IWUCHUKWU, DONALD
TENTATIVE RULING:

Please see Line 11.

13. 9:00 AM CASE NUMBER: C25-00404
CASE NAME: NATALIIA VIENTSKOVSKA VS. THEKEY MANAGEMENT, LLC
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: JOSHUA I. WHITE**
FILED BY: VIENTSKOVSKA, NATALIIA
TENTATIVE RULING:

Summary

Plaintiff's counsel, Laurel Employment Law, PC, by and through Joshua I. White and Mae-Elaine Delos Santos ("Withdrawing Counsel") filed a Motion to Be Relieved as Counsel for Plaintiff Nataliia Vientkovska ("Motion"). The Motion is **granted** as set forth herein.

Background

This case alleges Labor Code violations by Plaintiff Vientkovska ("Plaintiff") against Defendant Thekey Management LLC. This matter is stayed pending arbitration. On December 4, 2025, Withdrawing Counsel filed a Motion to Be Relieved as Counsel, supported by her declaration claiming that "irreparable breakdown in the attorney-client relationship" has occurred. Withdrawing Counsel can no longer represent Plaintiff.

Analysis

Cal. Rules of Court Rule No. 3.1362 and Cal. Code of Civ. Proc. §§284(1) and (2) sets forth the standard and procedure to be relieved as counsel of record. The Code permits an attorney to be changed at any time before or after judgment or final determination “upon the consent of both client and attorney,” or “upon order of the court, upon the application of either client or attorney, after notice from one to the other.” Defendant’s Counsel has complied with the provisions of this rule and statute providing notice to Plaintiff and supporting this motion with a declaration articulating the reasons for withdrawal.

The Court finds that there is good cause to grant this Motion to relieve Withdrawing Counsel. The Court acknowledges that the prejudice to Plaintiff is minimal, as there is ample time for Plaintiff to retain trial counsel, after arbitration or to represent herself.

Ruling

After reviewing the papers and arguments submitted by counsel and after considering and weighing the prejudice to both sides, and reviewing the relevant statutory and decisional authority, the Court finds that there is good cause to grant the Motion of Withdrawing Counsel to be Relieved as Counsel of Record. The makes the following orders:

1. This motion is **granted**.
2. The Court will execute the Proposed Order Granting Attorney’s Motion to be Relieved as Counsel (Judicial Council Form MC-053) as submitted on December 4, 2025. The withdrawal is effective immediately.
3. Defendant’s Counsel is ordered to serve a copy of the Order (MC-053) to Plaintiff by mail at his last known address, along with a change of address form, Judicial Council Form MC-040, instructing the client to fill-out and file the change of address form with the Court.
4. The Court schedules a Case Management Conference for November 24, 2026 at 8:30 a.m. Withdrawing Counsel is ordered to provide notice to Plaintiff of this CMC, and to inform Plaintiff that she is ordered to appear.
5. Withdrawing counsel shall file a proof of service form indicating that the client was served with the Court’s Order (MC-053) and the Change of Address form (MC-040).

14. 9:00 AM CASE NUMBER: C25-00629
CASE NAME: THELMA ELLENBERGER VS. DELTA DENTAL
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: WESTERN DENTAL SERVICES, INC.

TENTATIVE RULING:

Before the Court is Defendant Western Dental Services, Inc. (“Defendant” or “Western Dental”)’s demurrer. The Demurrer relates to Plaintiff Thelma Ellenberger (“Plaintiff” or “Ellenberger”)’s complaint. Plaintiff is in *pro per*.

Defendant demurs to the Complaint on the grounds that Plaintiff’s medical malpractice claim is barred by the statute of limitations in Code of Civil Procedure section 430.10(e).